

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

Office of City Clerk

February 25, 2020

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:00p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS – Bryan Cook, Ken Esquibel, Mike Luna, Dr. Mark Rinne, Scott Roybal and Dicky Shanor. Absent: Rocky Case, Pete Laybourn and Jeff White. Also present: Kylie Soden, Deputy City Clerk; Michael O'Donnell, City Attorney; Alessandra McCoy-Fakelman, Deputy City Attorney and Robin Lockman, City Treasurer. The pledge of allegiance was recited.

Mayor Orr requested those who may be speaking to use the microphones so that their comments can be heard. Mayor Orr advised the meeting would be audio recorded and available on Facebook live and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the Mayor's Conference Room, and that Fire Union representatives were welcome to use Committee Room 104 for the purpose of meeting to caucus.

Mayor Orr advised the last meeting resulted in mutual agreement of several sections in the City's initial offer. TJ Haws, Union representative, presented their proposal, explained the format and inquired as to the review process. Discussion continued on the desired format of offers to be presented moving forward.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Shanor moved to meet in executive session, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present. Mayor Orr identified, in addition to members of the governing body present, the Deputy City Clerk, City Attorney, Deputy City Attorney and City Treasurer would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive Session convened at 6:11 p.m. in the Mayor's Conference Room]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:22 p.m. Discussion followed on the process of exchanging and presenting offers at future meetings. Mayor Orr advised the City rejected the Union's proposed offers for the following Sections and counter-offered with the City's original proposed offers for each section: Section 2-Definitions, Section 3-Exclusive Bargaining Agent, Section 8-Grievance Procedures, Section 13-Management Rights, Section 15-Department Staffing, Section 17-Hours of Work, Section 18-Trading Shifts, Section 19-Inclement Weather Conditions, Section 20-Holidays, Section 22-

Overtime, Section 23-Working in a Higher Job Rank, Section 24-Specialized Emergency Response Teams, Section 25-Conversion of Benefit Hours, Section 26-Wellness/Fitness Program, Section 28-Sick Leave, Section 35-Mileage Allowance and Section 37-Time Off for Union Business. Mayor Orr advised the City accepted the Union's proposed offers for Section 12-Union Representation and Section 34-Union Dues. Section 21-Classification of Employment and Basic Wages and Section 41-Prevailing Rights were presented with counter offers and explained to the Union. Union proposed Section 46-Military Leave, Section 47-Tuition Reimbursement and Section 48-Parental Leave were rejected by the City. Union representatives asked for detailed clarification and provided information related to their proposals on the following Sections: Section 2-Definitions, Section 3-Exclusive Bargaining Agreement, Section 8-Grievance Procedures, Section 13-Management Rights, Section 15-Department Staffing, Section 17-Hours of Work, Section 18-Trading Shifts, Section 19-Inclement Weather Conditions, Section 20-Holidays, Section 21-Classification of Employment and Basic Wages, Section 22-Overtime, Section 24-Specialized Emergency Response Teams, Section 25-Conversion of Benefit Hours, Section 26-Wellness/Fitness Program, Section 28-Sick Leave, Section 35-Mileage Allowance, Section 37-Time Off for Union Business, Section 41-Prevailing Rights, Section 46-Military Leave, Section 47-Tuition Reimbursement and Section 48-Parental Leave.

Mayor Orr stated the purpose of the special meeting had been met, and there being no other business previously noted for the special meeting, adjourned the meeting at 8:27 p.m.

Submitted by,

Kylie Soden,
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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